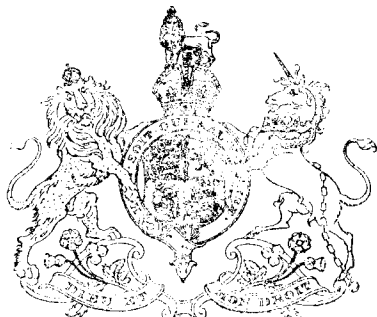




CHAPTER clxi.

An Act to provide for the sale and disposal of Saint Philip's Chapel (Regent Street) and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS by a warrant dated the first day of January one thousand eight hundred and twenty under the hands of three of the Lords Commissioners of His then Majesty's Treasury the said Lords Commissioners gave and granted unto William Lord Bishop of London and his successors for the time being Bishops of London and Gerrard Andrewes rector of the parish church of Saint James Westminster and his successors for the time being rectors of the said parish church (hereinafter referred to as "the Trustees") a certain piece of ground then vacant belonging to His Majesty and situate on the west side of a new street then being formed and now formed and known as Regent Street :

And whereas by an indenture of even date with the said warrant and made between the Trustees of the one part and the Right Honourable the Lords Commissioners of His then Majesty's Treasury of the other part the said Lords Commissioners declared that the said site was so granted as aforesaid to the Trustees upon trust that they should cause to be erected and maintained thereon a chapel and should cause and procure divine service to be performed therein according to the liturgy and rites of the Church of England and the Trustees were by the said indenture empowered to raise moneys not exceeding in the whole twenty thousand pounds for the purposes aforesaid by the mortgage sale demise or other disposition of all or any of the pews and seats in the said chapel (except five hundred free sittings therein) and by demising or letting for any term not exceeding ninety-nine years

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A.D. 1903. the ground under the said chapel for vaults or cellars and the
— Trustees accepted the said grant upon the terms and subject to
the conditions specified in the said indenture :

And whereas in pursuance of the trusts declared by the said indenture a chapel was erected upon the said site in or about the year one thousand eight hundred and twenty and was consecrated on the fourth day of July one thousand eight hundred and twenty and is called or known as Saint Philip's Chapel (hereinafter referred to as "the chapel") :

And whereas in exercise of the powers by the said indenture conferred upon them the Trustees in consideration of contributions made by various persons towards the costs and expenses of constructing and maintaining the chapel and fulfilling the other trusts declared by the said indenture granted to certain of such persons the right exerciseable for a period of ninety-nine years from the fourth day of July one thousand eight hundred and twenty of occupying pews in the chapel and also demised to certain other of such persons for the same period at the rent of a peppercorn certain vaults or cellars under the chapel :

And whereas divine service according to the liturgy and rites of the Church of England has from time to time been and still is conducted in the chapel but the number of persons attending such service is small and decreasing and the chapel has ceased to serve or to be required for the purposes for which the same was erected :

And whereas other churches and chapels have from time to time been erected within the said parish of Saint James Westminster which are better suited to the requirements of the said parish than the chapel :

And whereas no burials have taken place at the chapel :

And whereas it is expedient that the chapel and the site thereof should be sold freed from all such rights as aforesaid of occupying pews and seats and from the estates and interests of all lessees and other tenants and occupiers of vaults and cellars and from all other estates and interests whatsoever therein and that the proceeds of such sale should be applied wholly or partially in increasing the endowments of the other churches and chapels which have been erected within the said parish as aforesaid or some or one of them or otherwise as in this Act mentioned :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

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May it therefore please Your Majesty that it may be enacted A.D. 1903.
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say):—

1. This Act may be cited as the Saint Philip (Regent Street) Short title.
Chapel Act 1903.

2. The Lands Clauses Acts are (except where expressly varied Incorpora-
by this Act) incorporated with and form part of this Act: tion of
general Acts.

Provided that for the purposes of this Act the expression
“lands” in the said Lands Clauses Acts shall include all estates and
interests in the said chapel and the site and soil thereof and the
pews and seats therein and the vaults and cellars thereunder and
the expression “promoters of the undertaking” in the same Acts
shall mean the Ecclesiastical Commissioners.

3. In this Act the following expressions shall have the Interpreta-
meanings respectively assigned to them (that is to say):— tion.

“The chapel” means the chapel of Saint Philip Regent
Street;

“The Trustees” means the Trustees for the time being of the
chapel.

4. From and after the expiration of six months after the Extinguish-
passing of this Act the estates rights and interests of all persons ing estates
(other than the Trustees) in the chapel and the site and soil thereof and interests
and the pews and seats therein and the vaults and cellars thereunder of pewhold-
and of all persons holding any office connected with or employed in ers lessees
any capacity in or about the chapel shall be and the same are and others.
hereby extinguished and determined and the chapel and the site and
soil thereof shall subject to the provisions of this Act become vested
in the Trustees for an estate of inheritance in fee simple in possession
free from incumbrances and freed and discharged from all such
estates rights and interests as aforesaid.

5. The Trustees may remove and dispose of the font com- Removal
munion table stained glass windows church plate organ bells of fittings
monuments tablets memorial brasses and all other ornaments memorial
fittings and furniture (if any) in or about the chapel in such tablets &c.
manner and for such purposes as they may think fit All registers
deeds records books and documents shall be transferred to and
kept in a secure place in the church of Saint James Westminster:

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A.D. 1903. Provided that the heirs executors administrators relations or friends of any person to whose memory any such stained glass window monument tablet or memorial brass shall have been erected may with the consent of the Lord Bishop of the diocese of London remove the same to such place as they may think fit.

Sale of materials of chapel.

6. It shall be lawful for the Trustees at any time after the expiration of the said period of six months after the passing of this Act to sell the fabric of the chapel and the materials thereof either by public auction or by private contract and they shall cause such materials to be forthwith cleared away from the site of the chapel and shall pay the proceeds of such sale after providing for the expenses thereof to the Ecclesiastical Commissioners to be by them held as hereinafter directed.

As to conveyance of site of chapel.

7. Forthwith after the materials shall have been cleared away from the site of the chapel the Commissioners of Woods shall pay to the Ecclesiastical Commissioners such a sum as may be agreed upon for the purchase of the site or as failing agreement may be determined by an arbitrator to be agreed upon by the Commissioners of Woods and the Trustees and the Trustees shall thereupon execute a conveyance to His Majesty of the piece or parcel of ground granted by the said recited warrant of the first day of January one thousand eight hundred and twenty and the Ecclesiastical Commissioners shall give a receipt for the said amount paid to them by the Commissioners of Woods as aforesaid and from and after the execution of the said conveyance and the enrolment thereof in the office of Land Revenue Records and Enrolments the said piece or parcel of ground granted by the said recited warrant of the first day of January one thousand eight hundred and twenty shall become vested in His Majesty His heirs and successors as part of the possessions and land revenues of the Crown freed and discharged from all ecclesiastical uses trusts purposes obligations and disabilities whatsoever and from all such estates rights and interests as aforesaid as if the said grant of the first day of January one thousand eight hundred and twenty had never been made.

Ecclesiastical Commissioners to pay to Trustees costs of Act conveyance &c.

8. The Ecclesiastical Commissioners shall out of the moneys so received by them or out of any other moneys in their hands available for the purpose pay to the Trustees the amount of the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act and the preparation and completion of any indenture of conveyance as aforesaid or otherwise in

relation thereto respectively and of all other costs charges and expenses properly incurred by the Trustees in the execution of the provisions of this Act so far as such costs charges and expenses shall not have been defrayed out of moneys advanced by the Ecclesiastical Commissioners as hereinafter authorised.

A.D. 1903.

9. Notice of the provisions of the sections of this Act of which the marginal notes are “Extinguishing estates and interests of pewholders lessees and others” “Period for delivery of claims for compensation” and “Settlement of disputed claims” shall be given by the Trustees by advertisement published once in each of two successive weeks with an interval between such publications of not less than six clear days in the London Gazette and in two daily papers circulating in London or in such other manner as may be directed by the Ecclesiastical Commissioners :

Notice of certain provisions of Act to be given by advertisement.

Provided that the last of such advertisements shall be made before the expiration of six months from the passing of this Act.

10. Within six months after the date of the last of such advertisements all persons immediately prior to the passing of this Act having or claiming any estate right or interest in or connected with the chapel or the pews or seats therein or the vaults or cellars thereunder shall deliver to the Ecclesiastical Commissioners particulars in writing of their respective estates rights and interests and of the amounts (if any) claimed by them respectively in respect of the extinguishment and determination as aforesaid of such estates rights and interests.

Period for delivery of claims for compensation.

Any person who shall not within the said period or such extended period as the Ecclesiastical Commissioners may allow have complied with the provisions of this section shall cease to be entitled to any compensation in respect of any estate right or interest claimed by him and the Ecclesiastical Commissioners shall not be obliged to entertain the claim of any such person.

11. All such claims as aforesaid shall failing agreement between the persons respectively making the same on the one hand and the Ecclesiastical Commissioners on the other hand be determined in the manner prescribed by the Lands Clauses Acts for the determination of cases of disputed compensation and the amount (if any) of compensation payable in respect of each such claim shall become payable by the Ecclesiastical Commissioners to the person or persons entitled thereto within one month after the determination of the claim.

Settlement of disputed claims.

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Vaults and cellars not to be deemed part of a house building or manufactory.

12. A vault or cellar under the chapel or the site thereof and any building erected over any such vault or cellar shall not for the purposes of section 92 of the Lands Clauses Consolidation Act 1845 be deemed to be a part of any house or other building or manufactory.

Power to Ecclesiastical Commissioners to advance money for purposes of Act.

13. The Ecclesiastical Commissioners may from time to time advance for any of the purposes of this Act (including the payment of the costs charges and expenses of and incidental to the preparing applying for and passing of this Act and the sale by this Act authorised) such sums of money as they may think fit.

Application of moneys received by Ecclesiastical Commissioners.

14. The moneys received by the Ecclesiastical Commissioners as aforesaid shall be applied by them—

- (1) In the payment of compensation in respect of the extinguishment and determination of estates rights and interests in or connected with the chapel and the site and soil thereof and the pews and seats therein and the vaults and cellars thereunder ;
- (2) In repayment to themselves of the amount of any advances made by them under the last preceding section of this Act with interest at the rate of three and a half per centum per annum on the amount advanced from the date or respective dates of advancing the same to the date of repayment ;
- (3) In payment to the Trustees of the amount of the costs charges and expenses referred to in the section of this Act of which the marginal note is “ Ecclesiastical Commissioners to pay to Trustees costs of Act conveyance &c.” unless such payment shall have been discharged by the said Commissioners out of any other fund as in the said section provided ;
- (4) In payment of the costs charges and expenses incurred by them of and incident to the determination of the respective amounts of compensation payable as aforesaid and of and incident to the extinguishment and determination of such estates rights and interests as aforesaid ;
- (5) For the benefit of the parish of Saint James Westminster and the parish church thereof and other churches and chapels erected in the said parish or some or one of them or the endowments of such churches and chapels respectively to such extent (if any) and in such manner as shall in the

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opinion of the Lord Bishop of the diocese of London after A.D. 1903.
due notice and inquiry be expedient; and

- (6) For the better endowment of the work of the Church of
England in the said diocese as may be determined by the
Ecclesiastical Commissioners and the said bishop.

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